



A COMMUNITY OF CHOICE

Planning and Development Department
2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Jeanie Shrednik, Parks and Greenway Planner
Subject: Grant of Utility Easement between Cheyenne Light, Fuel and Power Company DBA Black Hills Energy located on a portion of Lot 8, Centennial Heritage, 2nd Filing on City owned property
Date: June 17, 2024

Background:

The item for consideration is a grant of 244+/- SF utility easement to Cheyenne Light, Fuel and Power Company DBA Black Hills Energy for utility facilities on a portion of Lot 8, Block 1, Centennial Heritage, 2nd Filing. The requested easement is located in the area of a future Greenway and language has been added for required bury depth of utility facilities to accommodate future Greenway construction. Both the agreement and exhibit have been reviewed and approved by City Surveyor

The Governing Body review schedule is as follows:

- Introduction and Referral 06/24/2024
- Public Services Committee 07/02/2024
- Final Reading 07/08/2024

Attachments:

1. Grant of Access Easement
2. Easement Exhibit

UTILITY EASEMENT

THIS EASEMENT is made and entered into this _____ day of _____, 2024, by and between **the City of Cheyenne, Wyoming (“City”), a Municipal Corporation, its successors and assigns, (hereinafter “Grantor”), and Cheyenne Light, Fuel and Power Company DBA Black Hills Energy;** having an address of 1301 West 24th Street, Cheyenne, WY 82001 (**hereinafter “Grantee”**).

Grantor, in consideration of the sum of Ten Dollars (\$10.00) and other valuable consideration, the receipt of which is hereby acknowledged, hereby grants, bargains, sells and conveys to Grantee, its lessees, licensees, successors and assigns, a perpetual right-of-way and utility easement for an UNDERGROUND ELECTRIC POWER DISTRIBUTION LINE(S), collectively **“Facilities”**; and all appurtenances and appliances necessary in connection therewith, including but not limited to any and all necessary attachments and appurtenances for said Facilities;

TOGETHER WITH the power to extend to any communications company, or “dry” utilities provider, the right to use any trench or conduit placed pursuant to the provisions hereof.

AND TOGETHER WITH the right, privilege and perpetual right-of-way to survey, construct, operate, patrol, inspect, maintain, alter, repair, rebuild, upgrade, up-rate, enhance, replace, and remove said facilities, under and over said lands, now or at any future time, and the right of ingress and egress to and from the Facilities of Grantee. Said Easement being more particularly described as follows:

An 10-foot-wide utility easement being more particularly described as:

All of the West 10 feet of Lot 8, Block 1, Centennial Heritage, 2nd Filing, City of Cheyenne, Laramie County, Wyoming.

Said Easement containing approximately 244 square feet more or less.

As a further consideration of this agreement, the parties hereto agree as follows:

1. Grantee has selected the route for said Facilities over and through said premises, and shall be responsible for all construction, reconstruction, operation, installation, use, repair, replacement, upkeep, monitoring, and maintenance of the Facilities,
2. That Grantee will bury all Facilities a minimum of 36 inches below existing ground to allow for construction of future Greenway trail,
3. That Grantee will replace or rebuild any and all unusual or excessive damage to the easement property, and/or pay for any damage caused which shall be occasioned by the construction, operation and maintenance of said Facilities under and through the above-described premises,

4. Grantee, following the installation, maintenance or removal of the Facilities, shall restore the surface of the Permanent Easement and any constructed improvements to, as near as practicable, the condition of the surface and the constructed improvements prior to said installation or maintenance,

5. If any stakeholder requires relocation of the Facilities (including, but not limited to Grantor, Grantee AND the City of Cheyenne, Utilities Franchisor and Right-of-Way and Greenway Administrator) Grantee agrees to relocate the Facilities at its own expense subject to the following:

a. Grantor provides a suitable alternate location for such Facilities and grants the necessary easement rights at the new location upon the same terms and conditions herein provided.

It is further understood and agreed that this agreement shall run with the land and shall inure to the benefit of, and be binding upon the legal representatives, heirs, devisees, successors and assigns of the respective parties, and by the execution and acknowledgment thereof, Grantors jointly and severally waive their homestead rights to the above-described lands so far as the same may be affected by this agreement.

It is the intention of the parties hereto that Grantor is hereby conveying the uses herein specified without divesting himself, his heirs or assigns, of the right to use and enjoy the above described premises: PROVIDED, however, such use shall not, in the judgment of said Grantee, interfere with or endanger the construction, safety, operation or maintenance of said lines, and provided further that no building shall be constructed on the easement without written permission from Grantee.

Title to said lines shall be and remain in said Grantee.

Grantor hereby represents, warrants and covenants that Grantor is the sole owner(s) of the above-described land, subject to existing liens and easements of record and has all rights to grant this easement.

[THIS SPACE INTENTIONALLY LEFT BLANK]

IN WITNESS WHEREOF, this instrument has been executed and effective on the day and year first above written.

Signed and delivered in the presence of:

GRANTOR:

GRANTEE:

THE CITY OF CHEYENNE, WYOMING

BLACK HILLS ENERGY

PRINT NAME

PRINT NAME

TITLE

TITLE

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SEE FOLLOWING PAGE(S) FOR ACKNOWLEDGEMENT

ACKNOWLEDGEMENTS

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

On this _____ day of _____, 2024, in and for the state and county aforesaid, before me, a Notary Public, personally came _____ of the City of Cheyenne, and executed the foregoing instrument for the purposes therein contained, by signing his/her name as such officer and as the free and voluntary act and deed of said municipal corporation.

WITNESS my hand and official seal in the state and county aforesaid, this _____ day of _____, 2024.

Notary Public, Laramie County, Wyoming

(SEAL)

My Commission Expires: _____

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

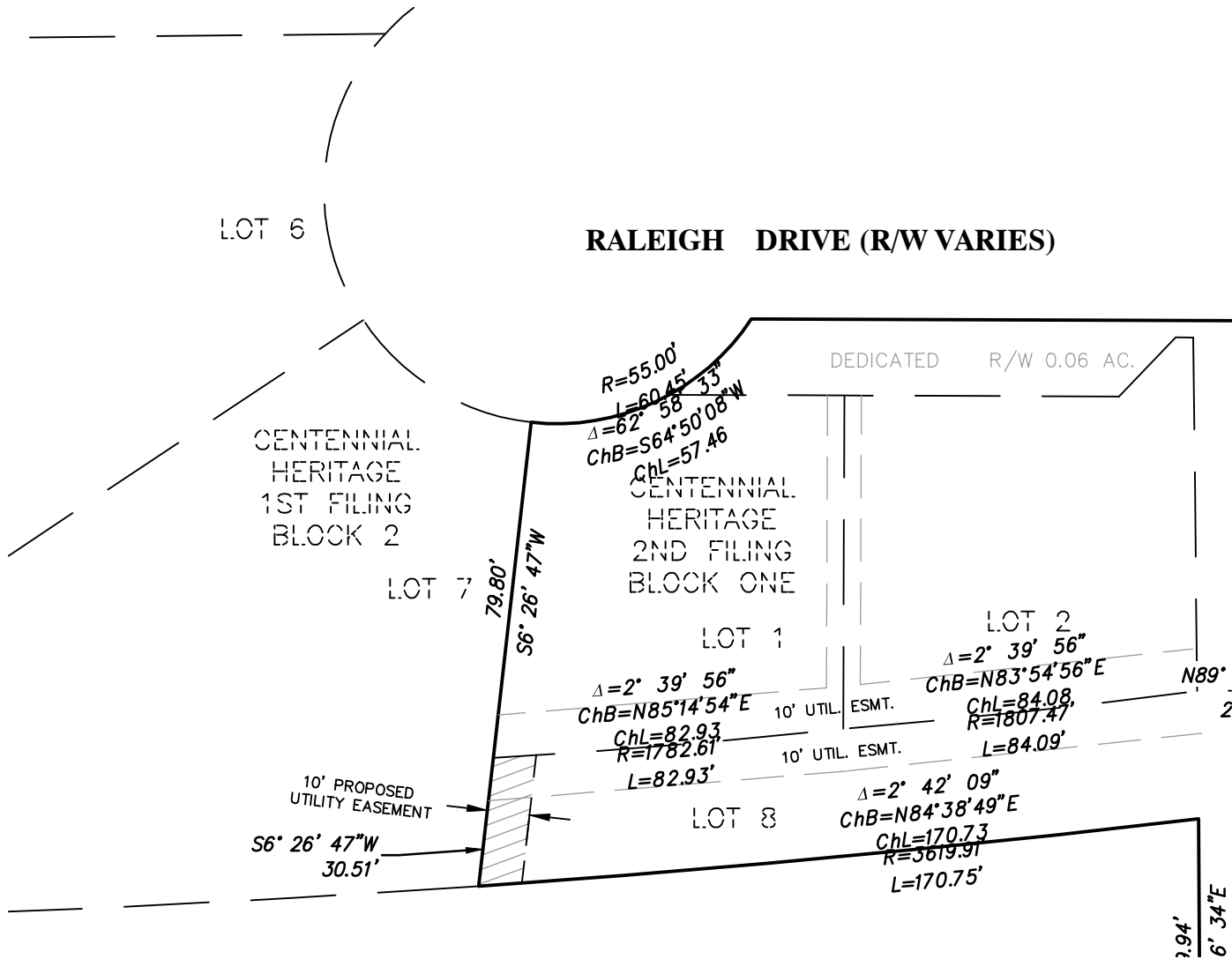
On this _____ day of _____, 2024, in and for the state and county aforesaid, before me, a Notary Public, personally came _____, who, upon oath, acknowledged that he/she is the authorized _____ of BLACK HILLS ENERGY, executed the foregoing instrument for the purposes therein contained, by signing his name as such officer and as the free and voluntary act and deed of said company.

WITNESS my hand and official seal in the state and county aforesaid, this _____ day of _____, 2024.

Notary Public, Laramie County, Wyoming

(SEAL)

My Commission Expires: _____



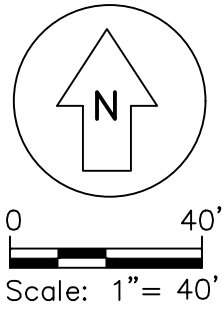
EASEMENT DESCRIPTION

A 10.00 foot wide utility easement across a portion of Lot 8, Block 1 of Centennial Heritage, 2nd Filing, City of Cheyenne, Laramie County, Wyoming, being more particularly described as follows;

The West 10.00 feet of Lot 8, Block 1, Centennial Heritage, 2nd Filing.

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.



UTILITY EASEMENT
FOR
LOT 8, BLOCK 1,
CENTENNIAL HERITAGE 2ND FILING
LARAMIE COUNTY, WYOMING.

PREPARED DATE: May 2024



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
1102 WEST 19th ST. CHEYENNE, WY. 82001 • (307) 634-7273
756 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 322-9789
www.SteilSurvey.com • info@SteilSurvey.com